

Ann Maynard

From: Marco Rubino
Sent: Wednesday, December 16, 2020 1:56 PM
To: Ann Maynard
Subject: Fwd: SECURE: Health information Re: Isolation

I'm doing better. Thank you Ann. Here is the court order. Let me know if you need anything.

Sent from my iPhone

Begin forwarded message:

Marco Rubino



Marco.Rubino@johnstonehvac-ny.com
johnstonesupply.com/269



ROCHESTER ▲ SYRACUSE

NYS Contract #PC67222

Group: 39000 Industrial and Commercial Supplies and Equipment

NYS Vendor ID #1000008135

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From: Marco Rubino <aramarjus78@gmail.com>
Date: December 16, 2020 at 1:54:57 PM EST
To: Marco Rubino <Marco.Rubino@johnstonehvac-ny.com>
Subject: Fwd: SECURE: Health information Re: Isolation

----- Forwarded message -----

From: <commcarehq-noreply-production@dimagi.com>
Date: Mon, Dec 14, 2020 at 10:29 AM
Subject: SECURE: Health information Re: Isolation
To: <aramarjus78@gmail.com>

STATE OF NEW YORK
COUNTY OF ONEIDA: DEPARTMENT OF HEALTH

In the Matter of the Isolation of
MARCO A RUBINO
DOB: 1985-06-04
Pursuant to Section 2100 of the Public Health Law

PUBLIC HEALTH
DIRECTOR'S ORDER

WHEREAS, 2019 Novel Coronavirus (2019-nCoV), an infection associated with fever and signs and symptoms of pneumonia or other respiratory illness, transmitted from person to person predominantly through droplet transmission and, when spread in the population, has significant public health consequences;

WHEREAS, 2019-nCoV has emerged as a significant health crisis in the State of New York, with tens of thousands of infections and several thousand deaths having occurred as of the date of the within Order;

WHEREAS, the Governor of the State of New York has issued a number of Executive Orders intended to slow the spread of 2019-nCoV in order to protect the health and well-being of the people of the State of New York, including orders closing non-essential businesses and directing the people of the State of New York to practice social distancing;

WHEREAS, on February 1, 2020, pursuant to 10 NYCRR Section 2.1(a), Dr. Howard A. Zucker, as Commissioner of Health of the State of New York, designated 2019-nCoV as a communicable disease under the State Sanitary Code;

WHEREAS, on February 6, 2020, the New York State Public Health and Health Planning Council ratified the designation of 2019-nCoV as a communicable disease under the New York State Sanitary Code through the adoption of emergency regulations amending 10 NYCRR Section 2.1;

WHEREAS, Section 2100 of the Public Health Law mandates that all local health officers guard against the introduction of such communicable diseases as are designated in the State Sanitary Code, by the exercise of proper and vigilant medical inspection and control of all persons and things infected with or exposed to such diseases;

WHEREAS, 10 NYCRR 2.29 provides that whenever a case of a highly communicable disease (as defined in 10 NYCRR Section 2.1) comes to the attention of the local health officer of a county, such local health officer shall isolate such patients as in her judgement she deems necessary;

WHEREAS, the federal Centers for Disease Control (CDC) has issued guidance that indicates, among other things, that those sick with 2019-nCoV and those with no symptoms should be isolated through public health orders;

WHEREAS, laboratory results have confirmed that you are ill with and currently carrying 2019-nCoV; IT IS HEREBY ORDERED that effective upon your receipt of this order, you are hereby directed to travel directly to, if not already located there, and remain isolated at 9852 HAZARD RD, MARCY, NY, 13403 as a result of having been exposed to a communicable disease as defined in 10 NYCRR 2.1, specifically 2019-nCoV, and because you are known to be carrying 2019-nCoV, consistent with CDC guidance issued on February 5, 2020 as described above, UNTIL 2020-12-17; and

ORDERED that if 9852 HAZARD RD, MARCY, NY, 13403 is a detached structure, you may go outside while remaining on the premise of 9852 HAZARD RD, MARCY, NY, 13403, but shall not leave the premise or come within six (6) feet of any person who does not reside at the premise; and

ORDERED that if 9852 HAZARD RD, MARCY, NY, 13403 is a multiple dwelling structure, you shall remain

in your specific dwelling and in no instance come within six (6) feet of any other person; and

ORDERED that you shall cooperate with the Oneida County Department of Health to report your daily health condition by telephone or text;

FURTHER, I DO HEREBY give notice that you have a right to be represented by legal counsel or to have counsel provided and that if you qualify to have counsel provided, such counsel will be made available. Moreover, you may supply the Oneida County Health Department the addresses and/or telephone numbers of friends and/or relative to receive notice of your isolation. At your request, the Oneida County Health Department shall provide notice to a reasonable number of such persons that you are being isolated pursuant to this order.

Dated: Utica, New York
2020-12-14

Phyllis D. Ellis
County of Oneida
Public Health Director